

SFIO Vs Adarsh Buildtech. And others

Since there are 187 different accused, the proceedings of the case with respect to each of the accused, including the bail applications and other applications filed by them, is as under:

Present : Sh. Lokender Singh Raghav, Advocate alongwith
Sh.Satish Aggarwal, Advocate for the SFIO.

Accused Companies, A-1 to A-70
And Accused No. 123 Rohit Modi

Present : Accused Rohit Modi, authorized representative of the
above companies, in custody.

As mentioned in the earlier orders, all the above referred accused companies are being represented by accused, Rohit Modi, who is already in custody in this case in personal capacity also and at present lodged in Central Jail, Jaipur (Rajasthan) in another case. Today accused Rohit Modi, has been produced through video conferencing. Accused Rohit be kept in Central Jail, Jail(Rajasthan) till 08.05.2020 and be produced in the court on the date fixed through video conferencing.

Accused Companies, A-71 to A-78
(And accused A-135, Sidharth Chauhan)

The accused Sidharth Chauhan has not appeared. warrant of arrest issued against him has not been received back either executed or unexecuted. As such, his fresh warrant of arrest be issued for 08.05.2020.

Accused Companies promoted by accused, Vivek Harivyasi:

A-79 : A3G Infra Private Limited
A-90 : Cynosure Real Estate Pvt. Ltd.
A-91 : EOS Developers Pvt. Ltd.
A-92 : Adler Infra Ventures Pvt. Ltd.
A-93 : Headstrong International Exports Pvt. Ltd.
A-115: Vivek Harivyasi in custody.

Present: Accused No. A-115 Vivek Harivyasi in custody.

Today accused Vivek Harivyasi, has been produced through

video conferencing. Accused Vivek Harivyasi be kept in District Jail, Bhondsi till 08.05.2020 and be produced in the court on the date fixed through video conferencing.

**Accused Company Prince Realbuild Pvt. Ltd., A-80 :
(through Naveen Kumar, Accused No. A-139 and AR for No. A-80)**

Bailable warrant of the above accused-company through its AR not issued as fresh/complete address not filed by SFIO. Let fresh bailable warrants be issued for 08.05.2020.

Accused Companies,

A-81 : HNS Infratech Pvt. Ltd.

A-82 : HNS Projects Pvt. Ltd.

(Through Accused A-140, Surender Singh)

Present : Accused A-140, Surender Singh in custody
with Sh. Anuj Lohia, Advocate for accused.

Accused No. A-140 produced before me through Video Conferencing. He be kept in District Jail, Bhondsi, Gurugram till 08.05.2020 and be produced in the court on the date fixed through video conferencing.

Accused-Company, A-83 : Sear Built Pvt. Ltd.

Present : None

Bailable warrant of the above accused-company through its AR not issued as fresh/complete address not filed by SFIO. Let fresh bailable warrants be issued for 08.05.2020.

**Accused-Partnership Firm, A-84, Abhay Kumar and Associates
(through Accused Abhay K. Shah, A-127, its partner)**

Present : Sh. Joydip Bhattacharya, Advocate, for accused.

Warrant of arrest issued for today not received back. Application seeking exemption from personal appearance of accused No.127 Abhey K. Shah moved on the ground that he have filed bail application before Hon'ble High Court. No order passed by the Hon'ble High Court regarding non appearance of the applicant before this Court is

shown by the applicant. No good ground is shown for his exemption from personal appearance. Hence, his application seeking exemption from personal appearance is hereby dismissed. This accused be summoned as per earlier order.

**Accused Company, A-85 : Axtron Tex Chem(I) Pvt. Ltd.
and accused No. A-130, Jainam Rathod.**

Present : Accused No.A-130, Jainam Rathod in custody

Accused A-130 produced before me through Video conferencing. He be kept in District Jail, Bhondsi, Gurugram till 08.05.2020 and be produced in the court on the date fixed through video conferencing.

Accused companies :

A-86 : Laxmikripa Buildcon Pvt. Ltd.

A-87 : Riddhi Siddhi Infraprojects Pvt. Ltd.

A-88 : Riddhi Siddhi Infratech Pvt. Ltd.

Present: Shri Jai Singh Chauhan, AR of above companies (not present today).
Shri Harash Kaushik, Advocate and Sh. Kuldeep Singh, Advocate assisted by Sh. Abhishek Sharma, Advocate.

Application for exemption from personal appearance has been moved on behalf of accused Jai Singh Chauhan, Authorized Representative of accused (company) No.86, 87 & 88 on the ground of marriage in his family. Copy of the marriage card is placed on record. In view of the grounds taken in the application, the same is allowed and personal appearance of accused Jai Singh Chauhan, Authorized Representative of accused company No.86, 87 & 88 for today.

**Accused-Partnership Firm, A-89: SL Bohra & Associate
(through Sudhir Mehta, Accused No. A-170 and Raj Kumar Bohra, accused A-171, its partners)**

Present: Shri Ankur Sood Advocate along with Shri Pankaj Motsara Local Advocate for the all the above accused.

Since an application for anticipatory bail on behalf of accused-firm, A-89, which has been filed by the applicant-accused, No. A-170 and A-171 on previous date of hearing, is pending adjudication,

therefore, the relief granted to said accused by my learned Predecessor vide order dated 4.9.2019 shall continue till decision of Anticipatory Bail application.

Accused Companies No.:

A-94 : Aarti Marketing Pvt. Ltd.

A-95 : Caranation Trading Pvt. Ltd.

A-96 : Cyan Financial Solutions Pvt. Ltd.

A-97 : Lever Finvest Pvt. Ltd.

Present: Rahul S/o Mangal Sain on bail (Being Director and AR of above companies)
S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

All the above accused companies are duly represented by Shri Rahul son of Sh. Mangal Sain, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 08.05.2020 for further proceedings.

**Accused company No. A-98 : Rolex Exports Pvt. Ltd.
(through its AR)**

Present: Naresh Kumar S/o Har Prasad on bail (Being Director and AR above company)
S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

The above accused company is duly represented by its AR, Naresh Kumar, who has already appeared as per section 305. As such he is directed to appear on date fixed 08.05.2020 for further proceedings.

**Accused-companies : A-99 : Dinkar Commercial Pvt. Ltd.
and A-100 : Amarendra Financial Pvt. Ltd.
(through Accused No. A-176 Raj Kumar Modi, its director)**

Present: Accused No. A 176 Raj Kumar Modi in custody.

The accused has been produced through Video conferencing. He be kept in District Jail, Bhondsi, Gurugram till 08.05.2020 and be produced in the court on the date fixed through video conferencing.

Accused-companies:

A-101: Alba Polymers Ltd.

A-102: Channel Nine Entertainment Ltd.

A-103: Funny Software Ltd.
A-104: Gold Line International Finvest Ltd.
A-105 : Inceptum Enterprises Limited
A-106 : Kanak Krishi Implements Ltd.
A-108: Porsche Capital Market Ltd.
A-109 : Sagitarius Advertising Ltd.
A-110: Satkar Finlease Ltd.
A-111 : Surya Marketing Ltd.
A-112 : Vishal Digital Studio Color Lab Pvt. Ltd.

Present:

Sh. Abishek, AR of A-101, along with S/Shri Kaushal Kumar and Ranjan Kumar, Advocates.
Sh. Deepak AR of A-102 along with Shri Surender Kr. Advocate.
Sh. Ram Naresh AR of A-103 along with Ms. Anita Shit Advocate.
Sh. Pawan Sharma AR of A-104, along with Shri Vichitra Sharma Advocate.
Sh. Annop, AR of A-105 along with Sandeep Joon, Advocate.
Sh. Niraj Kumar, AR of A-106 along with Nitesh Bhardwaj, Advocate.
Sh. Ranjan Kumar, Advocate for Jishan, AR of A-108
Sh. Vikas Paul, AR of A-109 along with Sachin Bali, Advocate.
Sh. Raju Yadav, AR of A-110 along with Rajesh Kumar, Advocate.
Sh. Ritik Sharma, AR of A-111 along with Sh. Varun Chugh, Advocate.
Sh Devender Kumar on bail (Being Director and AR of A-112 company) along with S/Sh. Rohit Arora and Anubhav Almadi, Advocates.

The ARs of all the above accused companies as named above are present. Their presence is accordingly marked on behalf of the accused companies referred above. And they all are directed to appear on date fixed, 08.05.2020 for further proceedings.

A-107 : Padmawati Art Creation Pvt. Ltd.

Bailable warrant of above mentioned accused company, A-107 not received back. Fresh bailable warrant be issued for 08.05.2020.

Accused who are in custody produced by Jail Incharge, Jaipur through Video Conferencing

A-113 : Mukesh Modi.
A-114 : Rahul Virender Modi.
A-120 : Vaibhav Lodha.
A-122 : Virender Modi
A-123 : Rohit Modi.
A-125 : Rajeshwar Singh
A-126 : Bharat Modi
A-131 : Ishwar Singh Sindal

A-134 : Vivek Purohit
A-142 : Bharat Dass Vaishnav

All the above named accused produced through VC. They now be produced through VC on 08.05.2020.

A-117 : Priyanka Modi in custody.

Accused Priyanka Modi A-117 produced before me through Video conferencing. Above named accused be kept in Central Jail, Jaipur till 08.05.2020 and be produced in the court on the date fixed through video conferencing.

A-167 : Rajeev Verma
A-168 : Sushil Maloo
A-169 : Rajendra Singh Bhandari
(Exempted from personal appearance till further orders)

Present : All the above accused on bail represented through Shri Mohan Chaudhary and Shri Rakesh Kumar, Advocates

Today Sh. Rakesh Kumar, Adv. put in appearance on behalf of said accused persons. He is directed to appear in the court on 08.05.2020 for further proceedings.

Accused who are absent but moved bail applications under section 438 Cr.P.C.

A-118 : Jinendra Vyas (Anticipatory bail application dismissed on 24.9.2019 by my learned Predecessor)

A-137 : Shinder Pal Singh (Anticipatory bail application dismissed on 13.9.2019 by my learned Predecessor)

A-138 : Girbir Singh Sandhu (Anticipatory bail application dismissed on 13.9.2019 by my learned Predecessor)

A-155 : Mahender Singh Tak

A-163 : Megha Chauhan

A-164 : Indu Tak

A-165 : Shyam Bihari Gupta

A-166 : Ravi Tak

A-170 : Sudhir Mehta

A-171 : Raj Kumar Bohra

A-172 : Saurabh Tak

A-178 : Mahesh Dutt Sharma

A-187 : Mahesh Kumar Tak

(Anticipatory bail of accused mentioned above are still pending)

In so far as, accused Nos. 155, 163, 164, 165, 166, 170, 171, 172, 178 and 187 are concerned, the benefit granted to them by my learned Predecessor vide order dated 4.9.2019 shall remain admissible to them.

Warrant of arrest issued against remaining accused No.118, 137 and 138 named above not received back executed or unexecuted. Fresh warrants be issued against them for 08.05.2020.

A-144 : Joydeep Dass Gupta

A-145 : Lovekush Sharma

A-148 : Avanish Kumar Tyagi

A-151 : Poonam Madan

(above named accused on bail but exempted from personal appearance till further order vide order dated 22.11.2019 and represented by Sh. Vishal Gupta, Adv.)

Accused No. A-144, A-145, A-148 and A-151 are on bail but they have been exempted from personal appearance till further order vide order dated 22.11.2019 and today Sh. Vishal Gupta, Adv. has put his appearance on their behalf. He is directed to appear on next date of hearing i.e. 08.05.2020 for further proceedings.

A-152 : Nazima Khan

A-153 : Shabbir Khan

Bailable warrants of accused No. 152 and 153 remained un-executed. Fresh bailable warrants of other accused who are unserved for today be issued for 08.05.2020.

Accused No. 116 Nitin Rathore absent.

Application seeking exemption from personal appearance of accused No.116 Nitin Rathore has been moved on the ground that he has filed bail application before Hon'ble High Court. No order passed by the Hon'ble High Court regarding non appearance of the applicant before this Court is shown by the applicant. No good ground is shown for his exemption from personal appearance. Hence, his application seeking exemption from personal appearance is hereby dismissed. This accused be summoned as per earlier order.

Other absent accused:

A-119 : Vinay Kumpawat
A-121 : Paras Bolia (A/bail application pending)
A-124 : Neha Gemawat
A-128 : Manish Chauhary
A-129 : Deepak Shrimali
A-132 : Meenakshi Modi
A-133 : Prakash Chandra Purohit
A-136 : Akshat Singh
A-139 : Naveen Kumar
A-141 : Aditya Sarda(interim bail upto 6.2.2020)
A-143 : Sudhir Punia
A-147 : Vimal Sanwarmal Sharma with (Sh. Vikram Panwar & Sh. Hitesh Kumar) (A/bail application pending)
A-154 : Bharat Kumar Mardia
A-156 : Praveen Maheshwari
A-157 : Rajeev Maheshwari
A-160 : Shiv Raj Sharma. (A/bail application pending)
A-162 : Naveen Choudhary(A/bail application pending)
A-173 : Peeyush Aggarwal

A-175 : Vijay Jhindal (A/bail application pending)
A-177 : Rajiv Kumar Rana

Applications seeking exemption from personal appearance on behalf of accused No.154 Bharat Kumar Mardia, No.156 Praveen Maheshwari and No.157 Rajeev Maheshwari, have been filed on the ground that these accused are residing at different places and indulged in business in different parts of India and the case is at the initial stage of appearance only. No reply has been filed. However the application have been orally opposed. In view of the grounds taken in the applications, these applications are allowed and personal appearance of accused No.154, 156, 157 namely Bharat Kumar Mardia, Praveen Maheshwari and Rajeev Maheshwari is exempted till further orders.

Since bail applications of accused No. 121, 146, 147, 160, 162, 174, 175, 177 are pending adjudication before this court, till decision of bail applications, no coercive process shall be initiated against them.

Accused, A-149 : Vijay Shukla

Present : S/Sh. Puneet Sharma and Gautam Avasthi, Advocate, for the accused, A-149.

Bailable warrant issued against accused Vijay Shukla not received back. Be issued for 08.05.2020.

At this stage an application for cancellation of bailable warrants filed. Copy given. For reply and arguments put up on 18.2.2020 alongwith other bail applications.

Accused who is in custody :

A-115 : Vivek Harivyasi
A-130 : Jainam Rathod
A-140 : Surinder
A-176 : Raj Kumar

Above named accused produced before me through video conferencing. They be kept in District Jail, Bhondsi till 08.05.2020 and be produced in the court on the date fixed through video conferencing.

Accused on bail

A-150 : Ajit Singh Rathore
A-154 : Bharat Kumar Mardia
A-156 : Parveen Maheshwari
A-157 : Raju Maheshwari
A-158 : Ramlal Arya
A-159 : Hemant Kumar Jain
A-161 : Praveen Kumar
A-174 : Parveen Singh Sangwan
A-179 : Damyanti Bhandari
A-182 : Nimesh Kumar Ramesh Chander Soni
A-183 : Rituraj Singh
A-184 : Dushyant Singh Rathore
A-186 : Jitesh Kumar Parmar.

All the abovenamed accused are on bail. They have put in appearance in person and are directed to appear in the court on 08.05.2020.

A-185 : Shashank Shekhar Singh Rathore
(approver)
A-180 : Ichchhita Dungarwal
A-181: Neha Kataria

Present : Accused no. A-180 and A-181 on bail with S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels.

Presence of accused No. A-180 has been exempted till further orders by this court on 22.11.2019. Sh. Joydip Bhattacharya and Hitesh Kumar, counsels, put in appearance today on her behalf. He is directed to appear in the court on 08.05.2020 for further proceedings.

The attendance sheet of accused is separately prepared .

(Dr. D.N.Bhardwaj)
ASJ, Gurugram
(UID no.HR0100)